



SUMMARY REPORT

Agenda Date: 6/11/2019

To: Board of Supervisors

Department or Agency Name(s): Transportation and Public Works

Staff Name and Phone Number: Johannes J. Hoevertsz 707-565-2231

Vote Requirement: Majority

Supervisory District(s): First, Fourth

Title:

Approval of the Plans and Specifications and Award Contracts for the removal of burned trees resulting from the 2017 Sonoma Complex Fires:

- A) 2019 Hazard Tree Removal Project - Public Trees, Phase 2 (County Project M11724)
- B) 2019 Hazard Tree Removal Project - Public Trees, Phase 3 (County Project M11725)

Recommended Actions:

- A) 2019 Hazard Tree Removal Project - Public Trees, Phase 2 (County Project M11724)
 - i) Approve the plans and specifications for 2019 Hazard Tree Removal Project - Public Trees, Phase 2.
 - ii) Award contract to low bidder Kingsborough Atlas Tree Surgery Inc., in the amount of \$2,387,140, plus a 10% contingency, and authorize the Chair to execute construction contract M11724. (First District)
- B) 2019 Hazard Tree Removal Project - Public Trees, Phase 3 (County Project M11725)
 - i) Approve the plans and specifications for 2019 Hazard Tree Removal Project - Public Trees, Phase 3.
 - ii) Award contract to low bidder, Kingsborough Atlas Tree Surgery Inc., in the amount of \$1,587,618, plus a 10% contingency, and authorize the Chair to execute construction contract M11725. (Fourth District)

Executive Summary:

- A. The Department of Transportation and Public Works (TPW) requests the Board approve plans and specifications, and award a construction contract to the lowest bidder, Kingsborough Atlas Tree Surgery Inc., for the 2019 Hazard Tree Removal Project - Public Trees, Phase 2. The project includes removal of approximately 2,736 fire-damaged trees and pruning limbs on approximately 58 fire-damaged trees.
- B. The Department of Transportation and Public Works (TPW) requests the Board approve plans and specifications, and award a construction contract to the lowest bidder, Kingsborough Atlas Tree Surgery Inc., for the 2019 Hazard Tree Removal Project - Public Trees, Phase 3. The project includes removal of approximately 2,079 fire-damaged trees and pruning limbs on approximately 15 fire-damaged trees.

Trees to be removed or pruned for both projects are within the public road right-of-way and were identified as risk to public safety.

Discussion:

Following the October 2017 Sonoma County Complex Fires, TPW hired a professional arborist consultant to evaluate the health of fire-damaged trees along roughly 90 miles of roads in burned areas of Sonoma County.

County crews and contractors removed trees along those roads that were an imminent threat to road users. The remaining trees were assessed to determine the level of damage they had suffered and the risk they posed to public safety if they were to fall into the public roadway. Trees identified as a risk to public safety were inventoried with GPS coordinates, tagged with a small metal plate, and categorized as presenting an “Extreme,” “High,” or “Moderate” risk of failing level.

TPW is seeking reimbursement from the Federal Emergency Management Agency (FEMA) for the project costs. In order to be eligible for reimbursement, the County will need to have the trees removed by April 2020. The projects are being undertaken to remove fire damaged trees, in similar areas of the Public Trees, Phase 1 and Private Trees Contracts in District 1 and District 4 along the County road right-of-way at risk of failing. The projects are categorically exempt from the requirements of the California Environmental Quality Act pursuant to California Public Resources Code Sections 21080(b)(3) and (b)(4), and California Code of Regulations Title 14, Section 15269. This project is also categorically exempt as a minor alteration to land under California Code of Regulations Title 14, Section 15304.

On April 1, 2019, County of Sonoma requested a time extension from April 11, 2019 to April 10, 2020 to complete the County’s Fire Debris Removal Projects.

- A. TPW recommends the Board approve the plans and specifications for the 2019 Hazard Tree Removal Project - Public Trees, Phase 2 (County Project M11724). The Department also recommends award of the M11724 contract to low bidder, Kingsborough Atlas Tree Surgery Inc., in the amount of \$2,387,140, plus a 10% contingency.
- B. TPW recommends the Board approve the plans and specifications for the 2019 Hazard Tree Removal Project - Public Trees, Phase 3 (County Project M11725). The Department also recommends award of the M11725 contract to low bidder, Kingsborough Atlas Tree Surgery Inc., in the amount of \$1,587,618, plus a 10% contingency.

The Projects were advertised for bids from April 8, 2019 to May 3, 2019.

Bids were opened on May 3, 2019. Bids were received as follows:

- A. 2019 Hazard Tree Removal Project - Public Trees, Phase 2 (County Project M11724)

Kingsborough Atlas Tree Surgery Inc.\$ 2,387,140

The Professional Tree Care Company..... \$ 2,831,100

RPF Emergency Services, LLC..... \$ 3,398,285

West Coast Arborists, Inc..... \$ 3,599,550

The Engineer’s Estimate for Phase 2 is \$ 3,791,100. The low bid of \$ 2,387,140 is \$1,403,960 (37%) below the Engineer’s Estimate.

- B. 2019 Hazard Tree Removal Project - Public Trees, Phase 3 (County Project M11725)

Kingsborough Atlas Tree Surgery Inc.\$ 1,587,618

The Professional Tree Care Company..... \$ 2,108,300

RPF Emergency Services, LLC..... \$ 2,592,115

West Coast Arborists, Inc.....\$ 2,737,550

Arbor Works Inc.\$ 4,515,354

The Engineer's Estimate for Phase 3 is \$ 2,942,400. The low bid of \$ 1,587,618 is \$1,354,782 (46%) below the Engineer's Estimate.

For efficiency and expediency, Phase 2 and Phase 3 of the Hazard Public Tree Removal Project were bid concurrently and both items are before the Board today for approval. Construction of the Hazard Tree Removal Project - Public Trees, Phase 1 (awarded to Richard Smith, doing business as Bay Area Tree Specialists on 10/16/2018) is to be completed in June 2019. Bids for the Phase 1 project were within the Engineer's Estimate. We expect that the bids for the Phase 2 and Phase 3 projects are lower than the Engineer's Estimate because the unit prices were gathered from the previous tree contract. These unit prices were not adjusted to account for the sheer volume of tree removal work because we do not have relevant unit price data for this kind of irregular work.

Total cost for both contracts is anticipated at \$3,974,758. TPW is currently seeking a determination from FEMA for these projects, and once approved, reimbursement is expected at 90%. Of the remaining 10% share, CalOES is expected to reimburse for 75%, with an anticipated local match of \$99,369 (2.5%). This local match will be paid through available Road fund balance.

Prior Board Actions:

October 17, 2017: Board approved resolution declaring an emergency need to remove dangerous vegetation From County Right-of-Way.

October 16, 2018: Board awarded contract for project M11719, 2018 Hazard Tree Removal Project - Public Trees, Phase 1 to low bidder, Richard Smith, doing business as Bay Area Tree Specialists, in the amount of \$1,099,825, plus a 10% contingency, and authorized the Chair to execute construction contract M11719.

January 8, 2019: Board awarded contract for project M11722, 2018 Hazard Tree Removal Project - Private Trees to low bidder, Richard Smith, doing business as Bay Area Tree Specialists, in the amount of \$496,993, plus a 10% contingency, and authorized the Chair to execute construction contract M11722.

FISCAL SUMMARY

Expenditures	FY 18-19 Adopted	FY19-20 Projected	FY 20-21 Projected
Budgeted Expenses		\$3,974,758	
Additional Appropriation Requested			

Total Expenditures		\$3,974,758	
Funding Sources			
General Fund/WA GF			
State/Federal			
Fees/Other			
Use of Fund Balance		\$3,974,758	
Contingencies			
Total Sources		\$3,974,758	

Narrative Explanation of Fiscal Impacts:

Costs for this project will be paid with available Roads fund balance and appropriations will be requested for the Roads Maintenance Budget at first quarter Consolidated Budget Adjustments. The County will seek reimbursement from FEMA for these contracts. If FEMA approves the funding then the County will be reimbursed 90% from FEMA and 75% of the remaining share from CalOES.

Staffing Impacts:			
Position Title (Payroll)	Monthly Salary Range (A - I Step)	Additions (number)	Deletions (number)

Narrative Explanation of Staffing Impacts (If Required):

None

Attachments:

Location Maps

Related Items "On File" with the Clerk of the Board:

Special Provisions, Bid Book, Plans